

		BVMG’s argument misses the mark, because it has not proffered any evidence showing that Defendant converted funds that belong to BVMG, and not Plaintiffs. BVMG argues that Plaintiffs have alleged they are the “employees” (as the Branch Manager) of BVMG, and this necessarily means BVMG is entitled to the employee retention credits as the “employer.” The written employment agreement between BVMG and Enriquez includes provisions regarding “Branch Personnel Compensation,” “Branch Personnel Time Records,” and the calculation of “Branch Expenses” and “Branch Revenues,” among other terms, but BVMG has not pointed to any provision of the agreement that gives it the right to collect employee retention credits from Plaintiffs to the extent they were applied for on Plaintiffs’ behalf. BVMG has not shown that the employee retention credits were a “source of income” or an “expense.” Even assuming for the sake of argument that BVMG may have ultimately received a benefit from Plaintiffs’ procurement of the employee retention credits, it is not clear that any credits should have been paid directly to BVMG, as opposed to paid directly to Plaintiffs, which may, in turn, affect the accounting between them, such that BVMG may have a claim for damages, but not a direct claim to the credits. Because BVMG has not proffered any evidence that it has a right to direct receipt of the employee retention credits, the motion is denied. (See <i>Knight v. Alefosio</i> (1984) 158 Cal.App.3d 716, 723 [trial court did not abuse its discretion in denying insurer right to intervene where insurance contract was silent as to subrogation rights].) Additionally, this application is untimely. BVMG has been on notice of this action since, at the latest, on or about 8/8/25, when it filed the notice of related case. (ROA 80.) The first amended complaint filed in the related case ending -7100 (on 8/6/25) reflects that BVMG knew or should have known it may have an interest in this action, which would not be adequately protected by Plaintiffs, given the litigation between them. Whether or not the hearing on this motion was advanced does not change the fact that BVMG waited months before bringing this motion. Plaintiffs shall give notice of the ruling.
7.	2023-1338703 Biltagi vs. Transamerica Life Insurance Company	The unopposed motion by Plaintiffs/Cross-Defendants Bill Biltagi and Tropical Entertainment, Inc. (collectively, “Cross-Defendants”) for judgment on the pleadings as to the first, fourth, and fifth causes of action alleged in the cross-complaint filed by Cross-Complainant Rami Fahil (“Fahil”) is denied without prejudice.

		A defendant may file a motion for judgment on the pleadings only after the defendant has already filed his or her answer to the complaint and the time for the defendant to demur to the complaint has expired. (Code Civ. Proc., § 438, subd. (f)(2).) Cross-Defendants have not filed an answer the Fahil’s Cross-Complaint. The Court notes it appears Biltagi attempted to file an answer on or about August 11, 2025; however, the filing was rejected by the Electronic Filing Clerk. There is no showing Cross-Defendants attempted to file an answer after Biltagi’s answer was rejected. Accordingly, the unopposed motion is denied without prejudice. Cross-Defendants shall give notice.
8.	2022-1264619 Kamell vs. Habashi	The Court denies Defendant/Cross-Complainant Yvette Habashi’s expansive Motion for summary judgment of Rafik Y. Kamell’s Complaint of her own Second Amended Cross-Complaint (SACC). As an initial matter, Kamell’s opposition was filed late. The Motion was continued, which allowed time for the reply. (ROA 526.) However, the opposition consists of a 57-page memorandum that violates the 20-page limit under California Rules of Court, rule 3.1113(d). Thus, the Court does not consider any arguments after page 20. The reply, too, was late. The moving party’s points and authorities in reply to the opposition must be served and filed at least 11 days before the date set for the hearing (unless the court shortens the period for good cause shown). (CCP § 437c(b)(4).) Here, the reply was filed with only 9 days’ notice. <u>Objections</u> Kamell’s evidentiary objections are overruled. <u>Legal Standards</u> “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (<i>Ibid.</i>) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to